

25VECV01132 25VECV01132

County: los-angeles

Division: Civil Law and Motion

Department: W

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Case Number: 25VECV01132 Hearing Date: July 13, 2026 Dept: W

Judge _____

Department W

Hearing Date:

Monday, July 13, 2026

Case Name:

Ramin

Yousezadeh, et al. v. Archstone Oak Creek I, LLC, et al.

Case No.:

25VECV01132

MOTIONS

Motion to be Relieved as Counsel

Moving Party:

Plaintiff's Attorney Ilya Signayevsky

Responding Party:

None.

Notice:

Proof of Service on June 2, 2026.

Documents:

Motion to be Relieved as Counsel –
6/2/26

Proposed Order – 6/2/26

Proof of Service 6/2/26

Declaration of Ilya Signayevsky in
Support – 6/2/26

Ruling:

The Court GRANTS Ilya
Signayevsky's Motion to be Relieved as Counsel.

Relevant

Background:

This is a
habitability case. Plaintiffs Ramin Yousefzadeh and Katrin Yousefzadeh allege
that on March 8, 2020, they entered into a rental agreement with Defendants.
Defendants in this case are the corporate owners of the rental property, Archstone
Oak Creek I, LLC, Archstone Oak Creek II, LLC, the individual owner, Tishman
Archstone-Smith, and the corporate leasing entity Avalonbay Communities, Inc. (Moving
Defendants are all Defendants except Tishman Archstone-Smith.)

Plaintiffs allege
that the apartment they rented from Defendants was uninhabitable from the
start. Allegedly, it suffered from severe mold infestations, water damage,
inadequate heating, had no working air conditioner, and was infested with
rodents. Plaintiffs allege they submitted multiple service requests, but
Defendants refused to make repairs.

On February 28, 2025, Plaintiffs brought suit alleging six causes of action: 1) failure to provide habitable dwelling, 2) breach of the covenant of quiet enjoyment, 3) private nuisance, 4) unfair business competition, 5) negligence, and 6) failure to return security deposit.

Now, Plaintiff

Ramin Yousezadeh's counsel, Ilya Signayevsky, moves to be relieved as counsel.

Analysis:

Counsel Ilya

Signayevsky moves to be relieved as Plaintiff's counsel.

The requirements

for a Motion to be Relieved as Counsel are outlined in CRC 3.1362. Moving counsel must: (1) submit form MC-051 - notice of the motion to the client, (2) submit form MC-052 - a declaration explaining why they could not acquire client's consent to withdraw, (3) submit form MC-053 – a copy of the proposed order, and (4) serve these documents and notice of the motion to both the client and all other parties in the case. (Cal. Rules of Court, rule 3.1362(a)-(e).) Additionally, relief cannot be granted if it is reasonably foreseeable that the client would suffer prejudice as a result of the withdrawal. (Mossanen v. Monfared (2000) 77 Cal.App.4th 1402, 1409.)

First, Ms. Signayevsky

has submitted Form MC-051 and has served Plaintiff with notice of this motion. (Motion to be Relieved, MC-051.) Second, Ms. Signayevsky has submitted Form MC-052, stating that:

"My representation of Ramin Yousezadeh in this matter was undertaken in conjunction with the representation provided by Binh Bui, Esq. During that representation, Mr. Yousezadeh was advised on multiple occasions, both orally and in writing, that responses to Defendant's written discovery were required and overdue. Despite repeated requests for Mr. Yousezadeh's cooperation and participation in preparing responses, Mr. Yousezadeh failed and refused to provide the necessary information and/or to verify responses. Mr. Yousezadeh's refusal to cooperate in this regard rendered it unreasonably difficult for counsel to effectively carry out the representation and to fulfill counsel's obligations to the Court and to opposing counsel."

(Declaration in Support, ¶ 2.)

Third, Ms. Signayevsky

submitted a copy of the proposed order via Form MC-053. (Proposed Order, MC-053.) Fourth, Ms. Signayevsky served these documents onto all parties in this case. (Mot. to be Relieved, Proof of Service, p. 2.) Thus, Ms. Signayevsky has met all the procedural requirements under CRC 3.1362.

Finally, the Court

must determine whether it is reasonably foreseeable that the client will suffer prejudice as a result of this withdrawal. Here, there are no motions scheduled in this case. Additionally, trial is scheduled for February 8, 2027. Thus, there is no foreseeable way that Plaintiff could be prejudiced by this withdrawal.

For these reasons,

the Court GRANTS Ilya Signayevsky's Motion to be Relieved as Counsel.

Conclusion:

The Court GRANTS Ilya

Signayevsky's Motion to be Relieved as Counsel.